SECOND CHAIR

# LEAD GENERATION SERVICE AGREEMENT

**This Lead Generation Service Agreement** ("Agreement") is entered into as of the date of the last signature below ("Effective Date") by and between:

**Provider:** Second Chair LLC Contact: sasha@2ndchair.net ("Second Chair" or "Provider")

**Client:** Tofer & Associates Contact: Claudia Salazar, Intake Manager ("Tofer" or "Client")

Each individually a "Party" and collectively the "Parties."

## 1. SCOPE OF SERVICES

1.1 **Services.** Provider shall generate and deliver personal injury ("PI") leads to Client through paid digital advertising campaigns, proprietary qualification funnels, and automated verification systems.

1.2 **Central Valley Market.** All lead generation activities under this Agreement shall target the **Central Valley Market of California**, including the Bakersfield and Fresno–Visalia metropolitan areas (the "Central Valley Market" or "Market").

1.3 **Case Types.** Provider shall deliver leads exclusively for motor vehicle accident ("MVA") personal injury claims, including: - Standard passenger-vehicle accidents, including soft tissue, moderate, and severe injuries - Trucking and commercial vehicle accidents - Motorcycle accidents - Rideshare (Uber/Lyft) accidents - Pedestrian accidents involving a motor vehicle - Bicycle accidents involving a motor vehicle - Wrongful death arising from a qualifying motor vehicle accident

1.4 **Exclusions.** Provider shall not deliver leads for: - Non-MVA personal injury claims (including but not limited to slip-and-fall, premises liability, dog bites, medical malpractice, product liability, and workers' compensation) - Parking lot accidents - Minor fender-benders with no reported injury - Property-damage-only incidents - Accidents in which the lead was the sole at-fault party

## 2. MARKET EXCLUSIVITY

2.1 **Exclusive Market.** While Client maintains an Active Engagement (defined in Section 2.3), Provider shall not sell, license, or deliver Central Valley Market PI leads to any competing personal injury law firm or legal services provider.

2.2 **Scope of Exclusivity.** Exclusivity applies to the Central Valley Market only. Provider retains the right to operate in all other markets and jurisdictions without restriction.

2.3 **Active Engagement and Continuation.** "Active Engagement" means that, at any given time, either (a) qualified leads remain undelivered under this Agreement or any executed renewal package, or (b) the Parties have executed a renewal package or amendment covering the Market within the Continuation Window defined in Section 2.4. So long as Active Engagement is maintained, exclusivity continues without

interruption and without requiring re-execution of this Agreement; additional lead packages may be added by written amendment between the Parties.

2.4 **Continuation Window.** Following delivery of all leads under this Agreement or any then-current renewal package, the Parties shall have thirty (30) calendar days to execute a successor amendment continuing service in the Market ("Continuation Window"). If no successor amendment is executed within the Continuation Window, exclusivity in the Market shall lapse automatically and Provider may, at its discretion, offer Central Valley Market lead generation services to other firms.

2.5 **Lapse and Reinstatement of Exclusivity.** Exclusivity also lapses automatically upon (a) termination of this Agreement under Section 14, or (b) Client's material failure to make payment when due that remains uncured for fifteen (15) calendar days following written notice. Upon lapse, the Parties may reinstate exclusivity by executing a new package or amendment, subject to Market availability at the time of reinstatement.

2.6 **No Obligation to Renew.** Neither Party is obligated to renew or extend this Agreement. The expiration of exclusivity under this Section is a routine consequence of the Continuation Window and is not a breach by either Party.

---

## 3. TERM

3.1 **Initial Term.** This Agreement commences on the Effective Date and continues until the earlier of: (a) delivery of all leads purchased under this Agreement, or (b) one hundred twenty (120) calendar days from the Effective Date ("Initial Term").

3.2 **Renewal.** Upon satisfactory completion of the Initial Term, the Parties may negotiate a renewal or expanded engagement under a separate agreement or amendment.

---

## 4. PAYMENT TERMS

4.1 **Total Fee.** Client shall pay Provider a total of **Fifty-Three Thousand Dollars ($53,000.00)** ("Total Fee"), prepaid in full upon execution of this Agreement.

4.2 **Cost Per Lead.** The Total Fee is based on a blended cost of **Two Hundred Sixty-Five Dollars ($265.00) per qualified lead** delivered in the Central Valley Market.

4.3 **Lead Volume.** Provider shall deliver two hundred (200) qualified leads to Client under this Agreement.

4.4 **Payment Method.** Payment shall be made via direct bank deposit (ACH or wire transfer). Banking details are provided on the invoice.

4.5 **Invoicing.** Upon execution of this Agreement by both Parties, Provider shall issue an invoice for the Total Fee with payment instructions. The Total Fee is due within ten (10) business days of the date of invoice. Creative development and campaign launch will not commence until payment is received in full.

---

## 5. LEAD SPECIFICATIONS

5.1 **Qualification Criteria.** Each lead delivered to Client shall have passed through the following qualification process:

(a) **Accident Verification** — Confirmed involvement in a qualifying accident within the past twenty-four (24) months.

(b) **Fault Determination** — Lead indicates they are not the at-fault party, or were involved in a shared-fault scenario where they are not the primary at-fault party.

(c) **Accident Type** — Accident falls within the case types enumerated in Section 1.3.

(d) **Injury Reported** — Lead reports an injury sustained in the qualifying accident. All standard PI injury types are eligible under this Agreement, including soft tissue injuries, broken bones, surgical intervention, hospitalization, herniated or bulging disc, traumatic brain injury, concussion, lacerations, and burns.

(e) **No Existing Representation** — Lead confirms they do not currently have an attorney for the accident in question.

(f) **TCPA Consent** — Lead has provided one-to-one consent explicitly naming Tofer & Associates via a TrustedForm-certified consent mechanism.

(g) **Fraud Detection** — Lead has passed automated bot and fraud detection screening.

5.2 **Delivery Method.** Leads shall be delivered via email to a designated email address provided by Client. Each lead shall include: full name, phone number, email address (if available), accident type, injury description, fault status, accident date, and TCPA consent proof. Alternative delivery methods (e.g., CRM integration, webhook, API) are available and can be configured at any time upon Client's request, including integration with Client's existing intake automation stack.

5.3 **Delivery Timeline.** Provider estimates delivery of all leads within approximately eight to twelve (8–12) weeks of campaign launch. Estimates may vary based on advertising platform approval timelines, creative optimization pace, and market conditions. Campaign launch occurs after creative approval (see Section 7).

---

## 6. LEAD CREDIT POLICY

6.1 **Eligible Credits.** A delivered lead qualifies for a credit if any of the following conditions are confirmed:

(a) **At-Fault Lead** — The lead is determined to be the sole at-fault party as confirmed by police report or Client's intake discovery.

(b) **Already Represented** — The lead has existing legal representation for the accident in question, despite having indicated otherwise during the qualification process.

(c) **Outside Recency Window** — The lead's accident occurred more than twenty-four (24) months prior to the date of delivery.

(d) **Outside Market** — The lead's accident did not occur in the Central Valley Market and the lead does not reside within the Central Valley Market.

(e) **Duplicate** — The lead is a duplicate of a previously delivered lead within the prior ninety (90) days.

6.2 **Credit Mechanism.** Credits shall be issued as additional replacement leads at no charge. Credits are not redeemable as cash refunds.

6.3 **Dispute Process.** Client must submit a credit request within fourteen (14) calendar days of lead delivery, specifying the lead and the applicable condition from Section 6.1. Provider shall review and respond within forty-eight (48) hours.

6.4 **Non-Refundable Conditions.** Leads are not eligible for credit in the following circumstances: - Client's intake team was unable to contact the lead, provided contact information was valid at time of delivery - Lead decided not to proceed after initial contact with Client - Lead retained a different law firm after delivery to Client - Case value is lower than Client expected - Lead did not respond within Client's follow-up window, provided contact information was valid at time of delivery

---

## 7. CREATIVE APPROVAL

7.1 **Pre-Launch Review.** Provider shall submit all advertising creative (including ad copy, images, video, landing pages, quiz funnel flow, and TCPA consent language) to Client for review and approval prior to campaign launch. Creative review is a non-negotiable condition of this Agreement.

7.2 **Approval Timeline.** Client shall approve or provide written feedback on submitted creative within five (5) business days of receipt. Failure to respond within this period shall be deemed approval.

7.3 **Revisions.** If Client requests changes, Provider shall make reasonable revisions and resubmit within three (3) business days. Delayed approval by Client extends the estimated delivery timeline accordingly.

7.4 **Creative Ownership.** Provider retains ownership of all creative materials, campaign structures, funnel designs, and proprietary systems developed in connection with this Agreement. Client is granted a non-exclusive license to use approved creative solely in connection with the services provided under this Agreement.

7.5 **Ongoing Approval.** Any new creative developed after campaign launch shall be submitted to Client for approval before going live, following the same process described in this Section.

7.6 **California-Specific Compliance.** Provider acknowledges Client's heightened sensitivity to California Senate Bill 37 (SB-37) and shall ensure all creative materials, disclosures, and consent flows are SB-37 compliant prior to submission for Client's review.

---

## 8. COMPLIANCE

8.1 **Provider Responsibilities.** Provider shall: - Obtain TCPA-compliant, one-to-one consent that explicitly names Client on each lead (rather than generic or shared consent), evidenced by a TrustedForm certificate - Comply with Meta platform advertising policies, including Special Ad Category requirements - Comply with the California Rules of Professional Conduct applicable to legal advertising (Rules 7.1, 7.2, 7.3) - Comply with California Senate Bill 37 (SB-37) and all related California-specific advertising regulations - Maintain automated bot detection and fraud filtering systems - Maintain TrustedForm certificates as evidence of consent for all delivered leads - Use third-person language in all advertising creative as required by platform policies

8.2 **Client Responsibilities.** Client shall: - Provide accurate firm information for use in advertising and consent language - Maintain responsive intake operations to contact delivered leads in a timely manner - Provide timely feedback on lead quality and status to support campaign optimization - Comply with all applicable laws and ethical rules governing the practice of law in California

8.3 **Mutual Obligations.** Neither Party shall engage in misleading, deceptive, or non-compliant advertising in connection with this Agreement.

8.4 **Marketing Vendor; No Referral Service.** Provider is engaged solely as an advertising, lead generation, and marketing technology vendor. Provider does not provide legal advice, does not evaluate or recommend attorneys to consumers, does not select counsel for any consumer, does not guarantee legal representation, and does not receive any fee contingent on Client's signing, settlement, fee recovery, or legal outcome. Client acknowledges that approved advertisements and landing pages will identify Client as the law firm responsible for the legal services advertised, and Client shall review and approve all legal advertising content for compliance with applicable law and professional rules.

8.5 **Joint Advertising Compliance.** To the extent the Parties' activities are treated as joint legal advertising under California Business and Professions Code Section 6155 or related provisions, Client expressly authorizes the advertising, agrees that approved advertising will identify Client as a participating law firm, and accepts responsibility for the legal-advertising content approved by Client.

---

## 9. CONFIDENTIALITY

9.1 **Confidential Information.** Each Party acknowledges that in connection with this Agreement, it may receive confidential information from the other Party, including but not limited to: lead data, campaign performance metrics, pricing terms, proprietary systems and processes, and business strategies ("Confidential Information").

9.2 **Non-Disclosure.** Neither Party shall disclose Confidential Information to any third party without the prior written consent of the disclosing Party, except as required by law or as necessary to perform obligations under this Agreement.

9.3 **Survival.** The obligations of this Section shall survive termination of this Agreement for a period of two (2) years.

---

## 10. DATA HANDLING AND PRIVACY

10.1 **Data Collection.** Provider collects lead data through advertising-driven quiz funnels with explicit TCPA consent naming Client. All consent is documented via TrustedForm certificates.

10.2 **Data Transfer.** Lead data is transferred to Client via email unless otherwise requested. Alternative delivery methods (e.g., CRM integration, webhook, API) are available and can be configured at any time upon Client's request.

10.3 **Data Retention.** Provider retains verification audit trails, consent certificates, and lead qualification records for a minimum of five (5) years for compliance purposes.

10.4 **Privacy Compliance.** Both Parties shall comply with all applicable federal, state, and local data privacy laws in connection with the collection, handling, and transfer of lead data, including the California Consumer Privacy Act (CCPA) and California Privacy Rights Act (CPRA).

---

## 11. REPRESENTATIONS AND WARRANTIES

11.1 **Provider Represents and Warrants That:** - It is duly organized and authorized to provide the services described herein - It will deliver leads meeting the qualification criteria set forth in Section 5 - It will comply with applicable advertising laws, platform policies, and consent requirements - It will not knowingly deliver fabricated, fraudulent, or duplicate leads

11.2 **Client Represents and Warrants That:** - It is a law firm duly licensed and authorized to practice law in the State of California - It will handle all leads in good faith and in compliance with applicable legal and ethical obligations - It will provide timely feedback on lead status to support campaign optimization - It will not use lead data for purposes other than evaluating and pursuing potential legal representation

---

## 12. LIMITATION OF LIABILITY

12.1 **No Outcome Guarantees.** Provider makes no guarantee regarding Client's conversion rates, signed case volume, case outcomes, or revenue generated from delivered leads. Lead volume estimates are projections based on market data and advertising benchmarks, not commitments.

12.2 **Liability Cap.** In no event shall either Party's total aggregate liability under this Agreement exceed the total amount paid by Client under this Agreement ($53,000.00).

12.3 **Exclusion of Consequential Damages.** In no event shall either Party be liable for indirect, incidental, special, consequential, or punitive damages arising out of or in connection with this Agreement, regardless of the theory of liability.

---

## 13. INDEMNIFICATION

13.1 **Provider Indemnification.** Provider shall indemnify, defend, and hold harmless Client from and against any third-party claims, damages, losses, or expenses (including reasonable attorneys' fees) arising from: (a) Provider's breach of this Agreement, (b) Provider's failure to comply with applicable advertising laws or platform policies, or (c) Provider's negligent or willful misconduct.

13.2 **Client Indemnification.** Client shall indemnify, defend, and hold harmless Provider from and against any third-party claims, damages, losses, or expenses (including reasonable attorneys' fees) arising from: (a) Client's breach of this Agreement, (b) claims related to Client's legal representation of leads, or (c) Client's negligent or willful misconduct.

---

## 14. TERMINATION

14.1 **Termination for Convenience.** Either Party may terminate this Agreement upon seven (7) calendar days' written notice to the other Party.

14.2 **Termination for Cause.** Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches this Agreement and fails to cure such breach within seven (7) calendar days of receiving written notice of the breach.

14.3 **Effect of Termination.** Upon termination: - Provider shall cease all advertising activities in the Market - Client shall pay for all leads delivered prior to the effective date of termination - The Total Fee is non-refundable. Any undelivered lead balance remaining at the time of termination shall be available as credit toward future lead generation services with Provider for a period of twelve (12) months from the date of termination. Advertising spend, creative production, and campaign infrastructure costs already incurred by Provider are not recoverable. - Market exclusivity shall terminate immediately - Sections 9 (Confidentiality), 10 (Data Handling), 12 (Limitation of Liability), and 13 (Indemnification) shall survive termination

---

## 15. GENERAL PROVISIONS

15.1 **Governing Law.** This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws provisions.

15.2 **Dispute Resolution.** Any dispute arising under this Agreement shall first be subject to good faith negotiation between the Parties. If unresolved within thirty (30) days, disputes shall be resolved through binding arbitration in Los Angeles, California, in accordance with the rules of the American Arbitration Association.

15.3 **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, and agreements.

15.4 **Amendments.** This Agreement may be amended only by a written instrument signed by both Parties. Future expansions — including but not limited to additional California markets, live transfer products, or disqualified-lead routing arrangements — shall be addressed under a separate amendment.

15.5 **Assignment.** Neither Party may assign this Agreement without the prior written consent of the other Party.

15.6 **Notices.** All notices under this Agreement shall be in writing and delivered via email to the addresses listed above.

15.7 **Severability.** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

15.8 **Independent Contractors.** The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship.

---

## 16. SIGNATURES

By signing below, each Party acknowledges that it has read, understood, and agrees to be bound by the terms and conditions of this Agreement.

---

**PROVIDER: Second Chair LLC**

Signature: _____

Name: William Davis Ballard

Title: Co-Founder

Date: 04/24/26

**CLIENT: Tofer & Associates**

Signature: _____

Name: _____

Title: _____

Date: _____